

RH Customer Agreement for Placement Services

This RH Customer Agreement for Placement Services (the "Agreement") governs transactions by which you retain the Services of Robert Half International Inc., doing business through its division Robert Half Finance & Accounting ("RH") to assist **Wallace Supply LLC** ("you" or "your") in meeting its staffing needs.

1.1 Definitions

"Branch" means the RH branch located at the address identified on page 2 of this Agreement.

"Services" means when RH conducts searches for candidates for direct hire by you.

"Placement Letter" means the letters RH sends to you prior to, and after, you hire a candidate referred by RH.

1.2 Agreement Structure

RH provides additional terms for Services in documents called "Placement Letters" which are also part of this Agreement. All transactions under this Agreement will have a Placement Letter. In order to initiate Services, you will provide RH with notice (e.g., via telephone, e-mail, facsimile or mail) describing the Services you need. RH will promptly reply to such request and indicate whether RH will or will not provide the requested Services. If RH elects to provide the requested Services, RH will send you a Placement Letter.

If there is a conflict among the terms in the various documents, those of this Agreement prevail over those of a Placement Letter.

You accept the terms in a Placement Letter by 1) signing them, 2) using the Services, or allowing others to do so, or 3) making any payment for the Services. Services become subject to this Agreement when RH accepts your order by 1) sending you a Placement Letter, or 2) providing the Services.

1.3 Charges and Payment

If within twelve (12) months following the date a candidate was presented to you, you (or an affiliate or any other entity as a result of referrals by you) hire the candidate (either as an employee, consultant or independent contractor), you agree to pay to RH a fee based upon the hired candidate's annual starting base salary (plus any guaranteed increase in salary that is part of the initial employment offer, and guaranteed bonus and sign-on bonus, if applicable) according to the Pricing Section below. RH reserves the right to include as annual salary any expected bonus, commission or guaranteed increase in salary that is part of the initial employment offer. Part time employment fees will be calculated on the equivalent full-time salary multiplied by the percentage of time the employee works.

All fees are due and owing at the time the candidate accepts employment with you. You agree to pay RH no later than fifteen (15) calendar days from the invoice date.

If a hired candidate's employment with you terminates within the first ninety (90) calendar days of employment for any reason, other than reorganization, elimination of position, takeover or material change in job responsibility, RH shall (i) provide you with a replacement candidate ("Replacement Candidate") to backfill the position vacated by the departed employee (the "Initial Candidate"), and (ii) provide you with a credit (the "Credit"), which shall be applied toward the fee amount owed to RH by you for hiring the Replacement Candidate pursuant to the terms of this Agreement (the "Replacement Candidate Fee"). The amount of the Credit will be equal to the fee actually paid to RH by you for the Initial Candidate. To the extent that the amount of the Replacement Candidate Fee exceeds the amount of the Credit, you agree to pay the difference to RH within fifteen (15) calendar days from the date of RH's invoice for the Replacement Candidate Fee.

If any authority imposes a duty, tax, levy, or fee, excluding those based on RH's net income, upon any transaction under this Agreement, you agree to pay that amount as specified in an invoice or supply exemption documentation.

1.4 Changes to the Agreement Terms

For a change to be valid, both of us must sign it. Additional or different terms in any written communication from you (such as a purchase order) are void.

1.5 Limitation of Liability

Under no circumstances is RH liable for any special, incidental, exemplary, indirect lost profits, or consequential damages (including, but not limited to, lost business, revenue, goodwill, or anticipated savings), even if informed of the possibility.

1.6 Severability

In the event that any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions of this Agreement remain in full force and effect.

1.7 Agreement Term

This Agreement will continue for a period of one year after the last date listed below, unless terminated earlier. Either of us may terminate this Agreement on thirty days' written notice to the other.

Either of us may terminate this Agreement if the other does not comply with any of its terms, provided the one who is not complying is given written notice and reasonable time to comply.

Any terms of this Agreement which by their nature extend beyond the Agreement termination remain in effect until fulfilled, including the payment obligations set forth in Section 1.3 above, and apply to each party's respective successors and assignees.

1.8 Required Screenings

If you require RH to perform background checks or other placement screenings of RH's candidates placed with you, you agree to notify RH prior to the start of Services under this Agreement. RH will conduct such checks or screenings only if they are described in a signed, written amendment to this Agreement. If you request a copy of the results of any checks conducted on RH's placed candidates, you agree to keep such results strictly confidential and to use such results in accordance with applicable laws and solely for employment purposes.

1.9 Candidate Information

You agree to hold in confidence the identity of any RH candidate and the candidate's resume, social security number and other legally protected personal information, and you agree to implement and maintain reasonable security procedures and practices to protect such information from unauthorized access, use, modification or disclosure.

1.10 Warranties

RH MAKES NO EXPRESS OR IMPLIED WARRANTIES REGARDING THE SERVICES, INCLUDING, BUT NOT LIMITED TO, ANY WARRANTY OF QUALITY, PERFORMANCE, MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.11 Pricing

The fee shall equal 26.00% of the hired candidate's annual starting base salary, plus any guaranteed increase in salary that is part of the initial employment offer, and guaranteed bonus and sign-on bonus, if applicable.

This Agreement and its Placement Letters are the complete agreement regarding these transactions, and replace any prior oral or written communications between the Branch and you regarding these transactions. This Agreement is only applicable to, and the only Robert Half International Inc. branch and division obligated under this Agreement are, the Robert Half Finance & Accounting division of the Branch.

By signing below, both parties agree to the terms of this Agreement. Once signed, 1) any reproduction of this Agreement or Placement Letters made by reliable means (for example, photocopy or facsimile) is considered an original and 2) all Services ordered under this Agreement are subject to it.

Agreed to:
Wallace Supply LLC

By


Authorized signature

Name (type or print): Ann Maynard

Date: 7/18/22

Customer address: 77 Halstead St., Ste. 3, Rochester,
NY 14610

Agreed to:
Robert Half International Inc.

By


Authorized signature

Name (type or print): Barry Roy

Date: 7/15/2022

Branch address: 255 East Ave., Suite 401, Rochester,
NY 14604

After signing, please return a copy of this Agreement to the RH "Branch address" shown above.